

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JAYQUAN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
HAROONUL HASSAN, Shield No. 6703, POLICE
OFFICER SAUL DELACRUZ, Tax No. 956572
SERGEANT DAVID GRIECO, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 31, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER HAROONUL HASSAN, Shield No. 6703, 67th Precinct, 2820
Snyder Ave, Brooklyn, NY 11226
POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, 67th Precinct, 2820 Snyder
Ave, Brooklyn, NY 11226
SERGEANT DAVID GRIECO, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JAYQUAN JOHNSON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that he was falsely arrested by the defendants for allegedly Trespassing into a privately owned apartment building where he was visiting his friend who was a tenant in the building and who invited plaintiff into the building as her guest. Plaintiff alleges that on August 18, 2018 shortly before midnight or on August 19, 2018 shortly after midnight plaintiff was lawfully present in the lobby of his friend's apartment building located at 9720 Kings Highway, Brooklyn, New York, about to exit the building when defendants entered the building and unlawfully stopped, questioned, frisked, searched and falsely arrested/ imprisoned plaintiff. Defendants unlawfully transported plaintiff to the 67th Precinct whereat he was unlawfully searched, fingerprinted, photographed and detained in a holding cell for many hours. Plaintiff was eventually transported to Kings County Central Booking whereat the unlawful detention continued for many additional hours. Plaintiff was released from Kings County Central Booking without being charged with a crime on August 19, 2018, approximately 24 hours after the defendants initially detained plaintiff. The Kings County District Attorney's Office declined to prosecute plaintiff because there was insufficient evidence to establish probable cause to initiate a criminal prosecution against plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched,

confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff JAYQUAN JOHNSON is a resident of the state of New York.

3. POLICE OFFICER HAROONUL HASSAN, Shield No. 6703, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER HAROONUL HASSAN, Shield No. 6703, was at all times relevant herein, assigned to the 67th Precinct.

5. POLICE OFFICER HAROONUL HASSAN, Shield No. 6703, is being sued in his individual and official capacity.

6. POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, is and was at all times relevant herein, assigned to the 67th Precinct.

8. POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, is being sued in his individual and official capacity.

9. SERGEANT DAVID GRIECO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT DAVID GRIECO, is and was at all times relevant herein, assigned to the 67th Precinct.

11. SERGEANT DAVID GRIECO, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant

herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on December 12, 2018.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On August 18, 2018 shortly before midnight or on August 19, 2018 shortly after midnight plaintiff was falsely arrested by defendants for Trespassing into a privately-owned apartment building where he was visiting his friend who was a tenant in the building and who invited plaintiff into the building as her guest.

Commented [DH1]:

21. On the evening of August 18, 2018 plaintiff visited his friend at her apartment located at 9720 Kings Highway, on the fourth floor, Brooklyn, New York 11212..

22. Plaintiff arrived at his friend's apartment without incident and spent approximately 2 hours visiting his friend, and then left her apartment to go home..

23. On August 18, 2018 shortly before midnight or August 19, 2018 shortly after midnight, as plaintiff was about to exit his friend's apartment building located at 9720 Kings Highway when he ran into two acquaintances in the lobby of the building.

24. Plaintiff and his 2 acquaintances stopped briefly in the lobby of the building to chat with each other.

25. Plaintiff and the 2 men were chatting with each other in the lobby of the building for less than ten minutes when, defendants entered the lobby of the building through the building's front entrance, which was located in close proximity to where plaintiff was chatting with the 2 men.

26. Upon entering the privately-owned apartment building, the defendants walked directly to plaintiff and the 2 men he was chatting with, and defendants unlawfully stopped, questioned, frisked, searched and falsely arrested/ imprisoned plaintiff and the 2 men.

27. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

28. Upon information and belief, the explanation provided by defendants about their legal basis for stopping, frisking, and plaintiff and the 2 men was that they observed plaintiff and the two other men standing in the lobby of the building chatting with each other and not immediately exiting or proceeding further into the building.

29. At no time relevant herein did defendants ask plaintiff or the 2 men he was chatting with to exit the building.

30. In 2013 a Federal District Court Judge in the Southern District of New York found that the NYPD had an unconstitutional policy and practice of stopping, seizing and arresting individuals for allegedly trespassing into apartment buildings when the officers did not have a factual basis to believe the individuals they were stopping and arresting were engaged in criminal activity. See Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013).

31. The Court held that an individual's mere presence in a public space of an apartment building does not give police officers a legal basis to stop, question, frisk, and /or search the individual because there is nothing about an individual's mere presence in a public space of an apartment building that suggests an individual is committing a crime or violating the law any basis to believe the person is trespassing into the building or committing any other crime. Id.

32. The Court ordered the NYPD and its police officers to immediately stop engaging in unlawful stops, questionings and frisks and falsely arresting individuals for allegedly trespassing into an apartment building based solely upon the fact that the individual is present in a public space located inside the apartment building, without an objective factual basis to establish reasonable suspicion or probable cause that a crime is afoot.

33. Upon information and belief, The NYPD amended its written policies and training materials regarding when an NYPD officer can legally stop and seize individuals that police officers encounter while on patrol inside of apartment buildings so that the NYPD's written policies and practices were compliant with the Court's ruling in Ligon and the Constitution of the United States.

34. Upon information and belief, the NYPD retrained its entire police force regarding when an officer was legally permitted to stop, question, frisk and/ or arrest an individual for allegedly trespassing in an apartment building.

35. Although the NYPD amended its written policies and practices regarding stops, question and frisk, and arrests for alleged criminal trespass made by its officers, the NYPD is deliberately indifferent to the fact that its police officers continue to follow the NYPD's pre-2013 written policies and practices regarding this issue and does not take any action with its police officers to stop the unconstitutional conduct when police officers, such as defendants in this lawsuit, unlawfully stop, question, frisk, and arrest members of the public, such as plaintiff in this lawsuit, for allegedly trespassing into an apartment building, even when the officers' stated basis for making the stop and arrest was that the individual was present in a public space of a building, such as the allegations made by the defendants in this lawsuit

36. Upon information and belief, the NYPD has taken no action whatsoever to discipline or retrain the defendants in this lawsuit after they violated plaintiff's rights by stopping and arresting plaintiff because he was present in lobby of a private apartment building chatting with two other individuals even though (a) such behavior by plaintiff is not a crime, and does not meet the legal threshold necessary for a police officer to stop, seize or arrest an individual for criminal trespass, and (b) the Kings County District Attorney's Office declined to prosecute plaintiff in this case because the officers' allegations against plaintiff did not establish probable cause to prosecute plaintiff for Criminal Trespass.

37. There have been hundreds of lawsuits, Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

38. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public for allegedly committing the crime of Trespass because the individuals were present in a public space area of an apartment building. i

39. Defendants approached plaintiff and unlawfully subjected plaintiff to a frisk of his entire body.

40. Defendants did not recover any illegal drugs, weapons, or contraband from plaintiff or from plaintiff's possession, custody or control pursuant to the unlawful frisk of his person.

41. Defendants asked plaintiff if he lived in the building and plaintiff advised then officers that he did not live in the building and provided his identification with his home address written on the front.

42. The defendants asked plaintiff whether he was visiting someone, and plaintiff told defendants that he already visited his friend in her apartment and was about to exit the building. Additionally, plaintiff provided the officers with the apartment number of the friend he visited.

43. Upon information and belief, defendants admit that plaintiff provided them with his identification, advised the officers that he did not live in the building, and provided the apartment number of the person he was visiting to the officers.

44. Although plaintiff provided defendants with the information they requested, defendants proceeded to falsely arrest plaintiff for allegedly trespassing into the apartment building, without probable cause or legal justification to make the arrest of plaintiff.

45. Defendants unlawfully handcuffed plaintiff and transported him to the 67th Precinct against his will.

46. Defendants unlawfully searched, fingerprinted, photographed and detained plaintiff in a holding cell for many hours at the 67th Precinct.

47. Plaintiff was eventually transported to Kings County Central Booking whereat the unlawful detention continued, and plaintiff was unlawfully detained in several large holding cells with many other prisoners in each cell.

48. On August 19, 2018 at approximately 11:50 pm, approximately 24 hours after the defendants initially seized plaintiff, he was released from Kings Country Central Booking without being charged with a crime.

49. The Kings County District Attorney's Office declined to prosecute plaintiff because there was insufficient evidence to establish probable cause to prosecute plaintiff for criminal trespass or any other crime.

50. Specifically, the Kings County District Attorney's Office stated in its Declined Prosecution Affidavit that the officers did not provide "sufficient evidence that [Jayquan Johnson] was not at the location to visit someone."

51. In addition to violating plaintiff's Constitutional rights, the defendants blatantly violated the Court's standing Order in Ligon as well, and defendants stopped, questioned, frisked, searched, and falsely arrested/imprisoned plaintiff in total disregard of the Federal Judge's order for the NYPD and its police officers to immediately stop engaging in such unlawful and unconstitutional conduct.

52. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, and defendants did not possess any objective facts which suggest that plaintiff committed a crime or violated the law in any manner.

53. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

54. Defendants unlawfully handcuffed plaintiff and falsely arrested/imprisoned plaintiff, without probable cause or legal justification

55. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess and objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

56. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

57. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public for trespass when they are lawfully present in the public space of a privately owned apartment building and there is no factual basis to suspect the individual has committed a crime.

58. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

59. In Ligon, United States District Court Judge Shira A. Scheindlin held that, "[b]y 2011 city policymakers were on actual notice of a practice of unconstitutional trespass stops by city employees outside [privately owned apartment] buildings," and that, "[a]s early as 1999, the NYPD Legal Bureau was aware that it was unlawful to stop someone [in a privately owned apartment building] simply for entering and exiting [the] building." Ligon at 143.

60. The Court in Ligon further held that "despite being on actual notice that their policy of 'stop and question first, develop reasonable suspicion later' was unconstitutional, the NYPD failed to properly train officers, leading to more than 2,000 unlawful stops outside of TAP buildings in 2011 alone." Id.

61. Although defendant City and the NYPD have since changed their training and written policies to comply with the Court's rulings in Ligon, defendant City of New York and the NYPD continue to be deliberately indifferent to the fact that there is an unwritten policy and practice followed by NYPD police officers throughout the City wherein police officers continue to engage in an unlawful practice of stopping members of the public who are present in the public shared space of a privately owned apartment building simply for entering and exiting the building even if the officers don't possess any evidence that indicates the individual is engaged in criminal activity.

62. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

63. The unlawful stop, question, frisk, search, false arrest, and false imprisonment, of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, and falsely imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. The conduct of defendants in stopping, questioning, frisking and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Unlawful Search**

79. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

81. Defendants lacked probable cause to search plaintiff.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Negligence**

86. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Defendants owed a duty of care to plaintiff.

88. To the extent defendants claim that they mistakenly believed plaintiff was trespassing into the building where he was arrested and possessed additional information that legally led them to believe he was committing the crime of trespass then defendants breached that duty of care by causing plaintiff to suffer psychological and emotional injuries as a result of defendants' careless, reckless, negligent, and/or accidental behavior.

89. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

90. All of the foregoing occurred without any fault or provocation by plaintiff.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. By unlawfully stopping, questioning and frisking plaintiff and then falsely arresting him without any legal basis, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

96. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Intentional Infliction of Emotional Distress**

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The above-described conduct by unlawfully stopping, questioning and frisking plaintiff and then falsely arresting him without any legal basis, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

102. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

103. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

104. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

109. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

111. Defendants failed to intervene to prevent the unlawful conduct described herein.

112. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

115. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

116. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, Searching, and Arresting Individuals Trespassing into Apartment Buildings in violation of the Fourth and Fourteenth Amendments to the United States Constitution

117. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

118. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New

York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

119. A Federal Court has already found that for many years, including the time period of 1999 through 2011, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013).

120. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these stops and searches, and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

121. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

122. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

123. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jayquan Johnson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 31, 2019

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 31, 2019

/s/
DAVID M. HAZAN